



United States Department of State

Washington, D.C. 20520

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BRIEFING MEMO FOR THE SECRETARY

FROM: Special Envoy – Forrest C. Reiland

SUBJECT: (U) U.S. Policy Tools for Advancing Human Rights in the DPRK

(U) Interests and Values:

The United States' primary national interest on the Korean peninsula is the denuclearization of the Democratic People's Republic of Korea (DPRK), which poses a direct security threat to U.S. assets and regional allies. Mutual Defense Treaties with Japan and South Korea underscore the importance of regional security for U.S. interests. Additionally, curbing the DPRK's domestic weapons production and its growing arms transfers to Russia has become increasingly important, as sustaining U.S. interests in Europe depends in part on limiting Moscow's capacity to challenge NATO's eastern flank.

Historically, Washington's engagement with Pyongyang has demonstrated a belief that securing regional interests and advancing fundamental American values are divergent in the DPRK. This is illustrated in the cyclical nature of U.S. human rights advocacy, which surfaces most frequently alongside nuclear proliferation negotiations. However, this strategy has yielded little in terms of progress towards denuclearization. In fact, the DPRK's nuclear program has expanded over the last decade, alongside a modern hypersonic and ballistic missile program.

However, U.S. national interests and values are not convergent in the DPRK either, and can be more accurately categorized as parallel to one another. To this point, Pyongyang has repeatedly demonstrated that U.S. leniency on human rights does not advance diplomacy towards denuclearization. Thus, placing pressure on Pyongyang to reform its human rights practices will not derail Washington's objective of a non-nuclear North Korea.

Although maintaining a balance between core national interests and human rights advocacy is a delicate process, policy initiatives within both legislative and executive branches illustrate the importance of human rights in the DPRK to U.S. legislators. The North Korean Human Rights Reauthorization Act of 2017 and 2022 authorized funding for North Korean refugees and defectors, humanitarian assistance, and programs that promoted access to information.

Other sectors of the U.S. government have expressed concern as well. The State Department's 2024 country report to the UNHRC outlines many violations of North Korean human rights by the DPRK. These include torture, political imprisonment, and public executions.

Viewed holistically, these policies illustrate that human rights advocacy is an important, underutilized tool for supporting U.S. interests on the Korean Peninsula. Moving forward, I advocate placing a greater emphasis on addressing human rights violations with Pyongyang. Although the challenges presented by the regime are many, advancing human rights in the DPRK can reduce fear, government oversight, information restriction, and may ultimately assist in addressing national security interests in the region.

(U) U.S. Efforts to Date:

Diplomatic: The United States has utilized institutional forums such as the United Nations and the United Nations Human Rights Council (UNHRC) to conduct diplomacy with the DPRK on human rights. The U.S. supported the 2014 UN Commission of Inquiry (COI) and subsequent UNHRC resolution, which found the DPRK responsible for "widespread, systematic, and gross" violations of human rights that may amount to crimes against humanity.

Outside of UN channels, the United States has leveraged trilateral cooperation with Japan and South Korea to elevate political attention on the DPRK's human rights abuses. Additionally, Washington created a Special Envoy tasked with addressing human rights violations in the DPRK in the North Korean Human Rights Act of 2004.

Military: Defense partnerships with Japan and South Korea primarily focus on deterring Pyongyang. Joint military training efforts, mutual-defense treaties, and intelligence and technology sharing are tightly focused on strengthening vital U.S. interests in the region. Using military force to advance human rights inside the DPRK would carry undue risk however. Pyongyang's unpredictability toward Seoul, and explicit warnings against external intervention underscore these risks.

Economic: Washington has utilized significant economic sanctions against the DPRK. High-ranking DPRK officials, including Kim Jong-Un, have had assets frozen by the Treasury Department in accordance with sanctions for human rights abuses. Beyond coercive measures, the U.S. has also utilized humanitarian aid as an economic tool. Assistance authorized under the North Korean Human Rights Act of 2004 and related legislation supported vulnerable populations through food aid, medical supplies, and refugee protection. While humanitarian programs are deliberately insulated from sanctions to avoid punishing civilians, U.S. policymakers have often linked expanded aid to improved transparency, monitoring conditions, and modest human-rights openings.

Informational: The U.S. informational strategy toward the DPRK emphasizes two core objectives: expanding the flow of outside information into the country and elevating survivor testimony to shape international awareness. The North Korean Human Rights Act authorized broadcasting and dissemination of free information inside North Korea, aiming to expose citizens to outside perspectives and human-rights norms. Examples include the Radio Free Asia broadcasting initiatives, which broadcast independent international news in Korean. The U.S. has also worked with organizations such as the U.N. to promote and disseminate survivor testimony of DPRK defectors who experienced human rights abuses.

Washington's most effective and coherent application of DIME has been with economic and informational tools. Targeting the assets of North Korean elites illustrates the U.S. commitment to punishing human rights violators, and financing informational tools informs citizens of their human rights while weakening the DPRK's grip on absolute authority.

(U) International Law:

Yes, International Human Rights Law applies to the DPRK. The DPRK is a signatory to several treaties on human rights, including: The International Covenant on Civil and Political Rights (ICCPR), International Covenant on Economic, Social and Cultural Rights (ICESCR), Convention on the Rights of the Child (CRC), and Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW).

By ratifying these treaties, North Korea has a legal obligation to uphold human rights, including the freedom of expression, religion, and movement; prohibitions against torture and arbitrary detention; ensuring fair trial rights; protecting children and women from abuse; and providing minimum standards for food, health, and education.

The 2014 United Nations COI on Human Rights in the DPRK concluded that systematic, widespread, and gross violations of human rights in North Korea may constitute crimes against humanity.

International Humanitarian Law (IHL) applies to the rights of non-combatants, prisoners, and civilians in times of war. At this time, the DPRK is not currently violating IHL.

(U) Responsibility to Protect (R2P):

The widespread occurrence of human rights violations, as determined by the 2014 UN COI qualifies the DPRK as a state that is "manifestly failing" in its responsibility to protect its citizens from the most egregious crimes. Under the adoption of the 2005 World Summit Outcome Document, the international community would therefore have a responsibility to assess potential intervention using the "case by case" criteria. However, building a case faces challenges given the tightly controlled flow of information in and out of the DPRK.

Although there is significant evidence to merit an R2P intervention, the U.S. should not pursue such a strategy. Russian and Chinese veto power would guarantee that any Security Council resolution would fail. Furthermore, pursuing such a strategy would inflame Pyongyang, inhibit U.S. denuclearization objectives, and could lead to wider regional destabilization.

(U) Accountability and Responsibility:

The U.S. does not have any formal legal obligations to prosecute the DPRK for alleged violations of human rights. However, the U.S. is a party to the Convention Against Torture (CAT), and if a DPRK official accused of torture were to enter U.S. territory, the government would be obligated to extradite them under CAT.

Additionally, the DPRK is not a party to the Rome Statute, and is thus outside the jurisdiction of the International Criminal Court (ICC) without an explicit UNSC referral or a DPRK request for ICC intervention. Given the current composition of the SC and the DPRK's control in North Korea, neither of these scenarios are likely for establishing ICC jurisdiction.

However, European countries, including Germany, France, and Spain, have courts with universal jurisdiction. If a DPRK official accused of human rights violations were to travel to one of these states, they could be arrested and tried for their alleged crimes.

Another possible mechanism for eventual justice is an ad-hoc court or special tribunal. Effective examples have occurred in Cambodia with The Extraordinary Chambers in the Courts of Cambodia (ECCC). Justice was pursued after the Sierra Leone Civil War with the establishment of the Special Court for Sierra Leone. For such a mechanism to work, regime change would first be required to allow the evidence collection and prosecution to move forward.

(U) The Path Forward:

- 1. Strengthen coherence between economic and informational tools to address human rights violations.** Invest more to expose and broadcast DPRK human rights abuses, and increase targeted economic sanctions to create pressure on Pyongyang.
- 2. Maintain a consistent diplomatic focus on human rights** throughout any negotiations on denuclearization, ensuring these issues remain embedded in bilateral and multilateral discussions.
- 3. Increase diplomatic engagement on DPRK human-rights violations with regional powers**, including China, to broaden pressure and reduce Pyongyang's diplomatic space.